

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1416

By: West (Josh)

AS INTRODUCED

An Act relating to non-opioid treatment; defining terms; authorizing insurers to amend preferred drug lists; allowing for discretion in drug treatment; prohibiting certain drugs over others for treatment; allowing coverage of drugs once approved by the United States Food and Drug Administration; authorizing coverage of non-opioid drugs; authorizing reimbursement to hospitals for non-opioid treatment; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1313.1 of Title 74, unless there is created a duplication in numbering, reads as follows:

A. As used in this section:

1. "Group insurance plan" means a group insurance plan that covers state employees;

2. "Health care prescriber" means an individual authorized by law to prescribe drugs;

3. "Insurer" means an insurer that offers a group insurance plan; and

1 4. "Non-opioid treatment" means a drug or biological product
2 that is indicated to produce analgesia without acting on the body's
3 opioid receptors.

4 B. Except as otherwise provided in this section, an insurer,
5 for purposes of offering a group insurance plan, may adopt or amend
6 a state preferred drug list (PDL).

7 C. 1. In establishing and maintaining the PDL, the insurer
8 shall ensure that a non-opioid drug approved by the United States
9 Food and Drug Administration for the treatment or management of pain
10 is not disadvantaged or discouraged with respect to coverage
11 relative to an opioid or narcotic drug for the treatment or
12 management of pain on the PDL.

13 2. Paragraph 1 in this subsection does not prohibit an opioid
14 medication from being preferred over other opioid medications, or a
15 non-opioid medication from being preferred over other non-opioid
16 medications.

17 D. This section applies to a non-opioid drug immediately upon
18 its approval by the United States Food and Drug Administration for
19 the treatment or management of pain, regardless of whether the drug
20 has been reviewed by the insurer for inclusion on the PDL. This
21 section also applies to drugs being provided under a contract
22 between the insurer and a pharmacy benefits manager for purposes of
23 a group insurance plan.

1 E. An insurer, for purposes of offering a group insurance plan,
2 shall ensure that reimbursement is provided to a health care
3 prescriber who provides a non-opioid treatment to a covered employee
4 under the group insurance plan.

5 F. The insurer shall ensure that, to the extent permitted by
6 law, a hospital that provides either inpatient or outpatient
7 services to a recipient is reimbursed separately under the group
8 insurance plan for any non-opioid treatment as a part of those
9 services.

10 SECTION 2. This act shall become effective November 1, 2025.

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